

BC702695 BC702695

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Case Number: BC702695 Hearing Date: June 25, 2026 Dept: H

Ortiz, et al. v. Elmcrest Care

Center, et al., Case No. BC702695

ORDER ON MOTION

TO SUBSTITUTE PARTIES

The Court is inclined to

continue the hearing on Defendant Elmcrest Care Center's Motion to Substitute Parties for the reasons stated below and will hear from the parties at the time of hearing regarding an appropriate continued date.

Background

Plaintiffs

Ericka Ortiz, individually, as personal representative of Jose de Jesus Ortiz and as administrator for the Estate of Jose de Jesus Ortiz, Dolores Ortiz, Gabriela Ortiz, Jesse Ortiz and Aracely Ortiz (collectively, "Plaintiffs") allege as follows:

Jose de Jesus Ortiz ("Jose") was

a resident at Elmcrest Care Center ("Elmcrest").

Jose was found unresponsive on a floor mat face-down beside his bed on August 4, 2017. Jose died on August 8, 2017.

On

September 7, 2018, Plaintiffs filed a First Amended Complaint ("FAC"), asserting causes of action against Elmcrest, Sharon Balane-de Ocera (erroneously sued as Sharon Balano) ("Balane-de Ocera"), Juanita Cristalez (erroneously

sued as

Juanita

Cristalez) ("Cristalez"), Diana Rivas ("Rivas"), Sandra Alvizo ("Alvizo") (collectively, "Defendants") and Does 1-50 for: (1) Elder Abuse and Neglect, (2) Wrongful Death, (3) Negligence/Willful Misconduct, (4) Intentional Infliction of Emotional Distress, (5) Negligent Infliction of Emotional Distress, and (6) Fraud.

On

February 8, 2019, an "Order Compelling Plaintiffs to Arbitrate the Controversy and Staying Superior Court Action" was entered, wherein the elder abuse, negligence/willful misconduct and fraud causes of action filed by Plaintiff Ericka Ortiz as personal representative and as administrator of the Estate of Jose de Jesus Ortiz (Ericka") were ordered to arbitration; the action was otherwise stayed.

On May 2,

2023, Judge Peter A. Hernandez ("Judge Hernandez") issued an order ("May 2, 2023 Order") granting Defendants' Petitions to Confirm the March 30, 2022 Arbitration Award, denying Ericka's Petition to Vacate the March 30, 2022 Arbitration Award, Denying Ericka's Petition to Confirm the September 30, 2022 Arbitration Award and deeming moot Defendants' Petitions for Order Vacating Arbitration Award served on September 30, 2022 and for an Order Correcting the Corrected Final Arbitration Award served on September 30, 2022.

Ericka

thereafter appealed Judge Hernandez's May 2, 2023 Order. On June 8, 2023, Judge Hernandez ordered the case stayed in its entirety pending the appellate decision.

On June

26, 2023, Plaintiffs dismissed Luna, with prejudice.

On

October 31, 2024, the Court of Appeal's opinion was filed (reversed, with directions to the trial court to enter a new order confirming the Final Award served by the arbitrator on September 30, 2022). On January 17, 2025, remittitur was issued.

On June

12, 2025, Defendants' defaults were entered.

On

August 1, 2025, Elmcrest filed a "Notice of Bankruptcy," advising therein that "Genesis Healthcare, Inc., together with each of its Debtor affiliates and subsidiaries" filed for Chapter 11 bankruptcy.

On

August 7, 2025, Plaintiffs filed three "Amendment[s] to Complaint," correcting the names of "Diana Rivas" to "Diana Jacquelyn Urias aka Diana Rivas," "Juanita Cristales" to "Juanita Cristalez aka Juanita Cristales" and "Sharon Balano" to "Sharon Balane-de Ocera aka Sharon Blane aka Sharon Balano."

On

August 22, 2025, the Court issued an "Order on (1) Plaintiff's Motion for Fees, Costs, and Interest and (2) Defendants' Motion to Strike Costs."

On

August 28, 2025, the Court set aside Defendants' defaults.

On

September 2, 2025, Plaintiffs filed four "Amendment[s] to Complaint," wherein "Senior Care Genesis LLC" was named in lieu of Doe 1, "HCCF Management Group XI, LLC" was named in lieu of Doe 2, "Welltower, Inc." was named in lieu of Doe 3 and "Zac Properties XI, LLC" was named in lieu of Doe 4.

On

September 8, 2025, Plaintiffs filed two "Amendment[s] to Complaint," correcting the names of "Senior Care Genesis LLC, a Pennsylvania limited liability company" to "Senior Care Genesis LLC, a Delaware limited liability company" and "Welltower, Inc., an Alabama Corporation" to "Welltower, Inc., a Delaware Corporation."

On

November 7, 2025, Elmcrest filed a "Notice of Bankruptcy," advising therein that the case was stayed in its entirety and attaching therewith an "Order (I) Extending the Automatic Stay to the Non-Debtor Defendants and (II) Granting Related Relief" entered October 14, 2025 in case styled In re: Genesis Healthcare, Inc., et al., Case No. 25-80185-sgj11.

A Case

Management Conference and a Status Conference Re: Bankruptcy are set for June 25, 2026.

Discussion

Elmcrest moves the Court for an order, under California Rules of Court Rule 8.36, substituting GHC TX Operations LLC in its stead.

The Court is inclined to continue the hearing on the motion given that the case is currently stayed, pursuant to a "Notice of Bankruptcy" filed by moving party on November 7, 2025. The Court will hear from the parties regarding an appropriate continued hearing date at the time of hearing.